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|   |                                                               | <p>2111 also applies to foreign corporations. There is a provision that is analogous to Section 2111 that applies to domestic corporations. (See Corp. Code, § 1702.)</p> <p>Here, Plaintiff has shown that “the agent designated is no longer authorized to act” and that “no agent has been designated and [] no one of the officers or agents of the corporation specified in Section 2110 can be found after diligent search.” (Corp. Code, § 2111, subd. (a).)</p> <p>Plaintiff has also presented evidence that Defendant EndlessOne has not made the statement required by Corporations Code section 2105. (See Correll Decl., ¶ 4.)</p> <p>Therefore, the court will order that service be effectuated by personal delivery to the California Secretary of State or to an assistant or deputy secretary of state of one copy of the process and order.</p> <p>Plaintiff shall give notice of this ruling.</p>                                                 |
| 5 | <p><b>Navarro vs. Abdo</b></p> <p><b>30-2022-01287775</b></p> | <p><u>Motion to Be Relieved as Counsel</u></p> <p>Counsel Marc P. Grismer, Esq.’s Motion to Be Relieved as Counsel for Plaintiff Miguel A. Navarro is GRANTED.</p> <p>Counsel Marc P. Grismer, Esq. is ORDERED to submit to this court a proposed Order Granting Attorney’s Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed, within 10 days of this ruling.</p> <p>Within 15 days of receiving the signed Form MC-053 back from the court, Counsel Marc P. Grismer, Esq. is ORDERED to serve Plaintiff Miguel A. Navarro with the signed Form MC-053 and notice of this ruling, in the manner described in Rules of Court rule 3.1362(d).</p> <p>Counsel Marc P. Grismer, Esq. shall be relieved as counsel of record for Plaintiff Miguel A. Navarro effective upon the filing of a proof of service showing timely service of the signed Form MC-053 and notice of this ruling.</p> <p><u>Pending Motion</u></p> |

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|  |  | <p>Counsel Marc P. Grismer, Esq. (Counsel) moves to be relieved as counsel for Plaintiff Miguel A. Navarro.</p> <p><u>Standard to Be Relieved as Counsel</u></p> <p>"The attorney in an action or special proceeding may be changed at any time before or after judgment or final determination . . . [u]pon the order of the court, upon the application of either client or attorney, after notice from one to the other." (Code Civ. Proc., § 284.)</p> <p>The notice of motion and motion to be relieved as counsel under Civil Procedure Code section 284 shall be directed to the client and shall be made on the Judicial Council's Notice of Motion and Motion to Be Relieved as Counsel-Civil form (Form MC-051). (Cal. Rules of Court, rule 3.1362(a).)</p> <p>No memorandum is required for the motion. (See Cal. Rules of Court, rule 3.1362(b).)</p> <p>However, "[t]he motion to be relieved as counsel must be accompanied by a declaration on the <i>Declaration in Support of Attorney's Motion to Be Relieved as Counsel – Civil</i> (form MC-052). The declaration must state in general terms and without compromising the confidentiality of the attorney-client relationship why a motion under Code of Civil Procedure section 284(2) is brought instead of filing a consent under Code of Civil Procedure section 284(1)." (Cal. Rules of Court, rule 3.1362(c), italics original.)</p> <p>In addition, "[t]he proposed order relieving counsel must be prepared on the <i>Order Granting Attorney's Motion to Be Relieved as Counsel--Civil</i> (form MC-053) and must be lodged with the court with the moving papers." (Cal. Rules of Court, rule 3.1362(e), italics original.)</p> <p>Motions to be relieved as counsel "must be served on the client and on all other parties who have appeared in the case" and service must be made by "personal service, electronic service, or mail." (Cal. Rules of Court, rule 3.1362(d).)</p> <p>If the motion is served by mail, it shall be accompanied by a declaration stating facts showing either that (1) the service address is the current residence or business address of the client</p> |
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|  |  | <p>or (2) the service address is the last known residence or business address of the client and the attorney has been unable to locate a more current address after making reasonable efforts to do so within 30 days prior to filing the motion. (Cal. Rules of Court, rule 3.1362(d)(1).)</p> <p>"As used in this rule, 'current' means that the address was confirmed within 30 days before the filing of the motion to be relieved. Merely demonstrating that the notice was sent to the client's last known address and was not returned or no electronic delivery failure message was received is not, by itself, sufficient to demonstrate that the address is current." (<i>Ibid.</i>)</p> <p>If the motion is served by electronic mail, "it must be accompanied by a declaration stating that the electronic service address is the client's current electronic service address." (Cal. Rules of Court, rule 3.1362(d)(2).)</p> <p>The motion may be brought on various grounds, some of which include the client's failure to pay attorney fees, (<i>People v. Prince</i> (1968) 268 Cal.App.2d 398, 406); the client's insistence on an action that is not justified under existing law or by good faith argument, (<i>Estate of Falco v. Decker</i> (1987) 188 Cal.App.3d 1004, 1015); and a conflict of interest between counsel and the client, (<i>Aceves v. Superior Court</i> (1996) 51 Cal.App.4th 584, 592.)</p> <p>However, under the Rules of Professional Conduct, "a member shall not terminate a representation until the lawyer has taken reasonable steps to avoid reasonably foreseeable prejudice to the rights of the client, such as giving the client sufficient notice to permit the client to retain other counsel, and complying with paragraph (e)." (Rules Prof. Conduct, rule 1.16(d); see <i>Ramirez v. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915.)</p> <p>Thus, the court has discretion to deny a motion to be relieved as counsel where discharging counsel would result in "undue prejudice to the client's interests," (<i>Ramirez vs. Sturdevant</i> (1994) 21 Cal.App.4th 904, 915), or "an unreasonable disruption of the orderly processes of justice," (<i>People v. Ortiz</i> (1990) 51 Cal.3d 975, 979). The court may also deny an attorney's request to withdraw "where such withdrawal would work an injustice or cause undue delay in the proceeding".</p> |
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|   |                                                                                                      | <p>(<i>Mandell v. Superior Court</i> (1977) 67 Cal.App.3d 1, 4.) However, such discretion is to be exercised reasonably. (<i>Ibid.</i>)</p> <p>In this case, Counsel has complied with the requirements of the California Rules of Court, including serving the client with the motion papers by mail, after confirming within the last 30 days that the address is the client's current address.</p> <p>Counsel also has declared a justifiable reason to be relieved as counsel — the breakdown of the attorney-client relationship and a material breach of the retainer agreement.</p> <p>In addition, there are no substantive hearings on calendar and trial is not set until February 1, 2027. (See ROA #73.) Thus, given that the trial will not commence for 8 months, Plaintiff Miguel A. Navarro will have sufficient time to find new counsel and will not be unduly prejudiced in his ability to prepare for and try the case.</p> <p>Further, no opposition has been filed setting forth prejudice to Plaintiff Miguel A. Navarro or any other party should the court grant the motion to be relieved as counsel. (See <i>Nazir v. United Airlines, Inc.</i> (2009) 178 Cal.App.4th 243, 288 [failure to address or oppose issue in motion constitutes waiver of that issue].)</p> <p>Therefore, the court will grant the motion to be relieved as counsel.</p> <p>Counsel shall give notice of this ruling in the manner ordered by the court.</p> |
| 6 | <p><b>Four Aces Remodeling, LLC<br/>vs. Always in Motion, LLC</b></p> <p><b>30-2024-01449453</b></p> | <p><u>Motion to Be Relieved as Counsel</u></p> <p>Counsel Zachary McCready's Motion to Be Relieved as Counsel for Plaintiff Four Aces Remodeling, LLC is GRANTED.</p> <p>Counsel Zachary McCready ORDERED to submit to this court a proposed Order Granting Attorney's Motion to Be Relieved as Counsel – Civil (Form MC-053), that is completely and correctly completed and includes all upcoming hearing dates and the trial date, within 10 days of this ruling.</p>                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                                          |